

PRESIDENT AND VICE PRESIDENT

TWO OFFICES AND THE → PRESIDENTIAL ELECTION, VOTE VALUE → QUALIFICATIONS, OATH, TENURE, VACANCY → AID AND ADVICE, RECONSIDERATION → SEVEN PRESIDENTIAL POWER CLUSTERS → VETO AND ORDINANCE: THE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 TWO OFFICES AND THE PARLIAMENTARY EXECUTIVE DESIGN

TWO OFFICES AND THE PARLIAMENTARY EXECUTIVE DESIGN ARTICLES 52-62, 72, 74 CONSTITUTIONAL HEAD OF STATE + ARTICLES 63-71 EX OFFICIO CHAIRMAN OF RAJYA SABHA + PARLIAMENTARY LOGIC PRESIDENT ORDINARILY ACTS ON MINISTERIAL ADVICE

VICE-PRESIDENT ORDINARILY WORKS INSIDE PARLIAMENT CURRENT DATED CONTROL 24 AUGUST 2026

CONSTITUTIONAL BASIS / ARTICLE

- PRESIDENT: ARTICLES 52-62, 72, 74 constitutional Head of State + formal Union executive power + national continuity
- VICE-PRESIDENT: ARTICLES 63-71 ex officio Chairman of Rajya Sabha + constitutional reserve for presidential vacancy

POWER / PROCEDURE

- PARLIAMENTARY LOGIC
- President ordinarily acts on ministerial advice

CHECK / LIMIT

- Vice-President ordinarily works inside Parliament
- CURRENT DATED CONTROL: 24 AUGUST 2026

FEDERAL / RIGHTS IMPACT

- Droupadi Murmu → President
- C. P. Radhakrishnan → Vice-President and Rajya Sabha Chairman.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Constitution does not use "nominal executive" as a label; that conclusion follows from Articles 53, 74 and 75 and parliamentary practice.

01

STAGE 01 PRESIDENTIAL ELECTION, VOTE VALUE AND DISPUTE ROUTE

PRESIDENTIAL ELECTION, VOTE VALUE AND DISPUTE ROUTE ELECTORAL COLLEGE ARTICLE 54 ELECTED MPS + ELECTED MLAS OF STATES ARTICLE 55 MLA VOTE VALUE 1971 CENSUS POPULATION ELECTED ASSEMBLY STRENGTH MP VOTE VALUE

ELECTORAL COLLEGE: ARTICLE 54 elected MPs + elected MLAs of States + elected MLAs of

exclude nominated MPs, nominated MLAs and State Legislative Council members

WEIGHTING: ARTICLE 55

MLA vote value — 1971 census population / elected Assembly strength / 1000

MP vote value — total MLA vote value / elected MPs

CONSTITUTIONAL BASIS / ARTICLE

- ELECTORAL COLLEGE: ARTICLE 54 elected MPs + elected MLAs of States + elected MLAs of Delhi and Puducherry
- exclude nominated MPs, nominated MLAs and State Legislative Council members

POWER / PROCEDURE

- WEIGHTING: ARTICLE 55
- MLA vote value — 1971 census population / elected Assembly strength / 1000

CHECK / LIMIT

- MP vote value — total MLA vote value / elected MPs
- COUNT proportional representation by single transferable vote + secret ballot

FEDERAL / RIGHTS IMPACT

- Article 71 → Supreme Court; vacancy does not invalidate the election.
- ELECTORAL COLLEGE: ARTICLE 54 elected MPs + elected MLAs of States + elected MLAs of Delhi and Puducherry

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Dissolution of some State Assemblies does not constitutionally justify postponing the presidential election.

02

STAGE 02 QUALIFICATIONS, OATH, TENURE, VACANCY AND REMOVAL

QUALIFICATIONS, OATH, TENURE, VACANCY AND REMOVAL PRESIDENT CITIZEN + 35 YEARS + QUALIFIED FOR LOK SENIOR-MOST AVAILABLE SUPREME COURT JUDGE FIVE-YEAR TERM; RE-ELECTION ALLOWED ARTICLE 61 EITHER HOUSE STARTS 14-DAY NOTICE ONE-FOURTH SIGNATURES TWO-THIRDS OF TOTAL MEMBERSHIP IN EACH HOUSE VIOLATION OF CONSTITUTION

CONSTITUTIONAL BASIS / ARTICLE

- PRESIDENT citizen + 35 years + qualified for Lok Sabha + no office of profit oath before Chief
- re-election allowed

POWER / PROCEDURE

- continues until successor enters office casual vacancy election within six months
- IMPEACHMENT: ARTICLE 61 either House starts → 14-day notice → one-fourth signatures

CHECK / LIMIT

- two-thirds of total membership in each House → violation of Constitution
- ARTICLE 361 official-act immunity and procedural protection do not create substantive impunity.

FEDERAL / RIGHTS IMPACT

- PRESIDENT citizen + 35 years + qualified for Lok Sabha + no office of profit oath before Chief
- re-election allowed

CONSTITUTIONAL BASIS / ARTICLE

- PRESIDENT citizen + 35 years + qualified for Lok Sabha + no office of profit oath before Chief
- re-election allowed

POWER / PROCEDURE

- continues until successor enters office casual vacancy election within six months
- IMPEACHMENT: ARTICLE 61 either House starts → 14-day notice → one-fourth signatures

CHECK / LIMIT

- two-thirds of total membership in each House → violation of Constitution
- ARTICLE 361 official-act immunity and procedural protection do not create substantive impunity.

FEDERAL / RIGHTS IMPACT

- PRESIDENT citizen + 35 years + qualified for Lok Sabha + no office of profit oath before Chief
- re-election allowed

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The President is entitled to the official residence and statutory emoluments; these cannot be diminished during the term.

03

STAGE 03 AID AND ADVICE, RECONSIDERATION AND BOUNDED DISCRETION

AID AND ADVICE, RECONSIDERATION AND BOUNDED DISCRETION ARTICLE 74 COUNCIL OF MINISTERS WITH PM AT HEAD AIDS AND PRESIDENT MAY REQUIRE RECONSIDERATION ONCE RECONSIDERED ADVICE BINDS COURT SITUATIONAL CHOICE HUNG LOK SABHA IDENTIFY PERSON MOST LIKELY TO COMMAND CONFIDENCE OUTGOING MINISTRY CONTINUITY UNTIL AN ALTERNATIVE IS FORMED NOT PERSONAL POLICY POWER

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 74
- Council of Ministers with PM at head aids and advises the President

POWER / PROCEDURE

- President may require reconsideration once reconsidered advice binds court cannot inquire into what advice was tendered
- SITUATIONAL CHOICE hung Lok Sabha → Identify person most likely to command confidence outgoing ministry → continuity until an alternative is formed

CHECK / LIMIT

- NOT PERSONAL POLICY POWER
- Shamsher Singh (1974): constitutional head operates through responsible government.

FEDERAL / RIGHTS IMPACT

- ANSWER VERDICT the office can warn, encourage and require reconsideration, not create a rival executive.
- ARTICLE 74

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Weighted MLA votes preserve interstate population balance, equal MP vote values balance Parliament with the States, and PR-STV converts ranked preferences into a majority mandate for one office.

04

STAGE 04 SEVEN PRESIDENTIAL POWER CLUSTERS

SEVEN PRESIDENTIAL POWER CLUSTERS APPOINTMENTS, RULES OF BUSINESS, ADMINISTRATION IN PRESIDENT'S NAME SUMMON, PROROGUE, DISSOLVE LS, ADDRESS, NOMINATE, ASSENT RECOMMENDATION ROUTES, BUDGET PRESENTATION, FINANCE COMMISSION ARTICLE 72 CLEMENCY + ARTICLE 143 REFERENCE CREDENTIALS AND TREATY FORM, SUBJECT TO CONSTITUTIONAL LAW SUPREME COMMANDER IN CONSTITUTIONAL FORM ARTICLES 352, 356 AND 360 ON CONSTITUTIONAL ADVICE

EXECUTIVE — appointments, Rules of Business, administration in President's name

LEGISLATIVE — summon, prorogue, dissolve LS, address, nominate, assent

FINANCIAL — recommendation routes, Budget presentation, Finance Commission

JUDICIAL — Article 72 clemency + Article 143 reference

CONSTITUTIONAL BASIS / ARTICLE

- EXECUTIVE — appointments, Rules of Business, administration in President's name
- LEGISLATIVE — summon, prorogue, dissolve LS, address, nominate, assent

POWER / PROCEDURE

- FINANCIAL — recommendation routes, Budget presentation, Finance Commission
- JUDICIAL — Article 72 clemency + Article 143 reference

CHECK / LIMIT

- DIPLOMATIC — credentials and treaty form, subject to constitutional law
- MILITARY — Supreme Commander in constitutional form

FEDERAL / RIGHTS IMPACT

- EMERGENCY — Articles 352, 356 and 360 on constitutional advice
- CONTROL formal breadth is ordinarily exercised through ministerial responsibility and review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The President is not answerable to any court for official acts, subject to parliamentary investigation of an impeachment charge and the ability to sue the Union where law permits.

05

STAGE 05 VETO AND ORDINANCE: THE EXECUTIVE-LEGISLATIVE INTERFACE

VETO AND ORDINANCE THE EXECUTIVE-LEGISLATIVE INTERFACE ARTICLE 111 ORDINARY BILL RETURN ONCE REPASSED ORDINARY BILL ASSENT REQUIRED MONEY BILL CANNOT BE RETURNED CONSTITUTION AMENDMENT BILL

ARTICLE 111 ordinary Bill — assent / withhold / return once repassed ordinary Bill —

Money Bill — cannot be returned

Constitution Amendment Bill — assent required pocket veto — no textual decision deadline for Union

ARTICLE 123

Parliament not both in session + immediate action necessary

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 111 ordinary Bill — assent / withhold / return once repassed ordinary Bill — assent required
- Money Bill — cannot be returned
- Constitution Amendment Bill — assent required pocket veto — no textual decision deadline for Union Bills

POWER / PROCEDURE

- ARTICLE 123
- Parliament not both in session + immediate action necessary
- ordinance has force of Act — laid before Parliament

CHECK / LIMIT

- ceases six weeks after reassembly unless replaced / disapproved / withdrawn
- CASE CONTROL
- D.C. Wadhwa (1986) and Krishna Kumar Singh (2017) reject routine re-promulgation.

FEDERAL / RIGHTS IMPACT

- ARTICLE 123

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 20 November 2025 Article 143 opinion held that courts cannot create rigid timelines or deemed assent, but glaring, prolonged and unexplained inaction can attract limited directions to decide.

06

STAGE 06 ARTICLE 72 CLEMENCY AND THE GOVERNOR COMPARISON

ARTICLE 72 CLEMENCY AND THE GOVERNOR COMPARISON FIVE FORMS PARDON ARTICLE 72 COURT-MARTIAL CASES OFFENCES AGAINST UNION EXECUTIVE FIELD ARTICLE 161 STATE EXECUTIVE FIELD; CANNOT PARDON A COURT-MARTIAL DEATH SENTENCE RULE-OF-LAW CONTROL MINISTERIAL ADVICE + LIMITED REVIEW FOR MALA

CONSTITUTIONAL BASIS / ARTICLE

FIVE FORMS pardon

PRESIDENT: ARTICLE 72 court-martial cases offences against Union executive field all death-sentence cases

POWER / PROCEDURE

GOVERNOR: ARTICLE 161

State executive field; cannot pardon a court-martial death sentence may be suspended, remitted or commuted, not pardoned under Article 161

CHECK / LIMIT

- RULE-OF-LAW CONTROL ministerial advice + limited review for mala fides, arbitrariness or irrelevant material.
- FIVE FORMS pardon

FEDERAL / RIGHTS IMPACT

- PRESIDENT: ARTICLE 72 court-martial cases offences against Union executive field all death-sentence cases
- GOVERNOR: ARTICLE 161

CONSTITUTIONAL BASIS / ARTICLE

- FIVE FORMS pardon
- PRESIDENT: ARTICLE 72 court-martial cases offences against Union executive field all death-sentence cases

POWER / PROCEDURE

- GOVERNOR: ARTICLE 161
- State executive field; cannot pardon a court-martial death sentence may be suspended, remitted or commuted, not pardoned under Article 161

CHECK / LIMIT

- RULE-OF-LAW CONTROL ministerial advice + limited review for mala fides, arbitrariness or irrelevant material.
- FIVE FORMS pardon

FEDERAL / RIGHTS IMPACT

- PRESIDENT: ARTICLE 72 court-martial cases offences against Union executive field all death-sentence cases
- GOVERNOR: ARTICLE 161

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: For a Governor-reserved State Bill, Article 201 permits assent, withholding or direction to return a non-Money Bill; unlike Article 111, State re-passage does not expressly bind the President.

07

STAGE 07 VICE-PRESIDENT: ELECTION, REMOVAL, CHAIR AND ACTING ROLE

ELECTION, REMOVAL, CHAIR AND ACTING ROLE ELECTION MEMBERS OF BOTH HOUSES, ELECTED AND NOMINATED; STATE RAJYA SABHA RESOLUTION BY MAJORITY OF ALL THEN MEMBERS AGREED BY LOK SABHA 14-DAY NOTICE NOT IMPEACHMENT; NO 'VIOLATION OF CONSTITUTION' GROUND CHAIRMAN PROCEDURE, DISCIPLINE AND CASTING VOTE; NO ORDINARY FIRST TENTH SCHEDULE ADJUDICATION IS REVIEWABLE; OWN-REMOVAL DEBATE USES SPECIAL ACTING PRESIDENT DISCHARGES PRESIDENTIAL FUNCTIONS DURING VACANCY

ELECTION members of both Houses, elected and nominated; State legislatures excluded

Rajya Sabha resolution by majority of all then members

agreed by Lok Sabha — 14-day notice not impeachment; no 'violation of Constitution' ground is

CHAIRMAN procedure, discipline and casting vote; no ordinary first vote

CONSTITUTIONAL BASIS / ARTICLE

- ELECTION members of both Houses, elected and nominated; State legislatures excluded
- Rajya Sabha resolution by majority of all then members

POWER / PROCEDURE

- agreed by Lok Sabha — 14-day notice not impeachment; no 'violation of Constitution' ground is required
- CHAIRMAN procedure, discipline and casting vote; no ordinary first vote

CHECK / LIMIT

- Tenth Schedule adjudication is reviewable; own-removal debate uses special arrangement
- ACTING PRESIDENT discharges presidential functions during vacancy / inability; separate office rules apply.

FEDERAL / RIGHTS IMPACT

- ELECTION members of both Houses, elected and nominated; State legislatures excluded
- Rajya Sabha resolution by majority of all then members

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Vice-President is elected by all members of both Houses through PR-STV, excluding State legislators and thereby reflecting the office's primarily Union parliamentary character.

08

STAGE 08 CONVENTIONS, CASES, TRAPS AND THE ANSWER SPINE

CONVENTIONS, CASES, TRAPS AND THE ANSWER SPINE CONVENTION ROUTES SHAMSHER SINGH (1974) CONSTITUTIONAL HEAD KEHAR SINGH (1988) MARU RAM (1980) CLEMENCY ON ADVICE WITH BOUNDED REVIEW KRISHNA KUMAR SINGH (2017)

CASE / CONVENTION ROUTES

Shamsher Singh (1974) — constitutional head

Kehar Singh (1988) / Maru Ram (1980) — clemency on advice with bounded review

Krishna Kumar Singh (2017) — ordinance limits hung House — confidence, not personal preference

PRELIMS FIREWALL

CONSTITUTIONAL BASIS / ARTICLE

- CASE / CONVENTION ROUTES
- Shamsher Singh (1974) — constitutional head
- Kehar Singh (1988) / Maru Ram (1980) — clemency on advice with bounded review

POWER / PROCEDURE

- Krishna Kumar Singh (2017) — ordinance limits hung House — confidence, not personal preference
- PRELIMS FIREWALL
- President and Vice-President colleges are different

CHECK / LIMIT

- President impeachment != Vice-President removal six-month vacancy rule applies to President, not Vice-President
- Money Bill cannot be returned; Amendment Bill requires assent
- MAINS SPINE constitutional position — exact power — advice/procedure — case — bounded discretion

FEDERAL / RIGHTS IMPACT

- accountability — sentinel without a rival popular mandate.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Nominated MPs may participate in impeachment although they do not elect the President; State MLAs elect but do not impeach.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT A1. WHY THE PRESIDENT IS NEITHER RULER NOR RUBBER A2. ELECTION METHOD FOLLOWS OFFICE DESIGN INDIA AND FRANCE A3. INDIA AND USA PARDON POWER A4. ORDINANCES AND DEMOCRATIC LEGITIMACY A5. VETO, ASSENT DELAY AND CONSTITUTIONAL TIME

OPTIONAL DOCTRINE / CASE

- A1. Why the President is neither ruler nor rubber stamp
- A2. Election method follows office design: India and France
- A3. India and USA: pardon power
- A4. Ordinances and democratic legitimacy

ADVANCED LIMIT

- A5. Veto, assent delay and constitutional time
- A6. Clemency as mercy, public power and rule of law
- A7. Chairmanship, federal deliberation and neutrality
- A8. Reform matrix

COMPARATIVE NUANCE

- A9. Mains answer architecture
- [ANALYSIS] "Rubber stamp" is too strong because constitutional form can delay, warn and force reconsideration
- "independent executive" is equally wrong because reiterated advice binds.
- [ANALYSIS] Bagehot's rights - to be consulted, to encourage and to warn - illuminate the office, but Indian

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.